

TENTATIVE RULING FOR August 6, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2515316

SEAN SIMON ROSEMAN v. WALMART INC.

TENTATIVE RULING

On June 5, 2025, Plaintiff Sean Simon Roseman (“Plaintiff”) filed this employment discrimination action against Walmart Inc. (“Defendant” or “Walmart”). Previously, on August 20, 2024, Plaintiff filed a federal employment discrimination action against Walmart Inc. in the U.S. District Court, Central District of California, captioned *Sean Simon Roseman v. Walmart Inc.*, Case No. 5:24-CV-01775-CBM (SPx) (“the Federal Action”).

Plaintiff filed proof of service, showing that Walmart was served with the underlying complaint in this action by substituted service on June 24, 2025.

On July 24, 2025, Walmart filed a motion entitled Motion to Stay Action seeking the Court to stay the action pending resolution of the Federal Action. Although the caption is entitled motion to stay, the notice and body of the motion also expressly sought mandatory abatement of the State Court Action pursuant to CCP §430.10(c), which provides: “The party against whom a Complaint or Cross-Complaint has been filed may object, by demurrer or answer, as provided in Section 430.30, to the pleading on any one, or more of the following grounds: ... (c) There is another action pending between the same parties on the same causes of action.” The motion expressly specified abatement (another action pending) as one of the grounds barring the complaint. Because the law respects substance over form (CC §3528), a judge may disregard the caption of a motion and instead treat it in accordance with the relief it requests.

(*Hudson v. Superior Court* (2017) 7 CA5th 999, 1011). Accordingly, the court finds that Walmart filed a proper objection (demurrer) and responsive pleading to the complaint on July 24, 2025.

Five days later, on July 29, 2025, Plaintiff submitted a Request for Entry of Default, which was stamped “RECEIVED”, but not filed or entered by the Clerk. Plaintiff concurrently submitted a Default Judgment for entry by the Clerk, and it was stamped “RECEIVED”, but was not filed and judgment was not entered by the Clerk. Apparently, the clerk never processed or filed the Default and the documents have since been lost. (See Request for Further Action dated and filed 7/10/26 with attached Request for Entry of Default and Default Judgment).

On August 28, 2025, Walmart filed an answer in this current litigation. On September 24, 2025, this Court granted a stay in this current litigation, pending resolution of the Federal Action. (Sep. 24, 2025 Min. Order.) On March 4, 2026, this Court held a status conference. Both parties attended and represented that the Federal Action was still active and ongoing. (Mar. 4, 2026 Min. Order.)

On March 4, however, the Federal Action was actually dismissed without prejudice.

On April 17, 2026, Plaintiff filed the present motion to lift the stay in this action and request the Court enter the default judgment submitted in July 2025, or allow Plaintiff to correct any defects in the default judgment request.

On June 2, 2026, this Court convened an Order to Show Cause hearing, in which it stated that “[t]he Court orders stay lifted at this time.” (Jun. 2, 2026 Min. Order.)

ANALYSIS

Plaintiff’s present motion seeks to two distinct remedies: to lift the stay in the current action and to have this Court impose a default judgment.

The first request is moot. This Court already lifted the stay in this current action via its minute order on June 2, 2026, where it specifically stated that “[t]he Court orders stay lifted at this time.” (Jun. 2, 2026 Min. Order.)

The plaintiff’s request to enter default judgment for \$27,000,000 presents threshold jurisdictional issues which must first be independently determined by the Court. As discussed above, the court finds that defendant Walmart filed a responsive pleading objecting (demurring) to the complaint and seeking abatement *prior to* the plaintiff’s attempted filing of the Request for Entry of Default, which is a prerequisite to entry of Default Judgment. Therefore, a Request for Entry of Default “RECEIVED” by the clerk could not be entered by the clerk even if FILED on July 29, 2025, because Walmart’s responsive pleading was previously filed on July 24, 2025 (CCP § 585(b)). Under these circumstances, neither the Clerk nor the Court would have jurisdiction to enter a default. Here, there is no requirement that the court vacate the Default because the Default was not and could not be entered and consequently a Default Judgment was not and could not be entered.

Plaintiff argues that there was a failure by the defendant to meet and confer prior to filing the motion seeking abatement due to the existence of another action pending. However, a judge’s determination that the meet and confer process was insufficient is not grounds to overrule or sustain a demurrer. CCP §430.41(a)(4). Code of Civil Procedure § 430.41 does not contain any penalties for failing to follow the meet and confer process. (*Olson v. Hornbrook Community Servs. Dist.* (2019) 33 CA5th 502, 515 [rejecting plaintiff’s contention that consequence of defendant’s failure to comply with meet and confer requirements was for court to lose jurisdiction over the pleadings]). Nothing in the text of CCP

§430.41(a)(4) conditions its operation on a party's compliance with the other provisions of the statute. (*Dumas v. Los Angeles County Bd. Of Supervisors* (2020) 45 CA5th 348, 355). Therefore, the purported lack of a meet and confer preceding the filing of the motion does not automatically result in a bar to the motion.

The court's analysis could end here with no further comment being necessary. However, as to additional jurisdictional issues regarding the entry of a default and default judgment for \$27,000,000.00 and plaintiff's further request for \$172,800,000.00 in the moving papers, it does not appear that plaintiff served a Statement of Damages prior to submitting the request to enter default (CCP § 425.115 [recovery of punitive damages upon default]).

TENTATIVE RULING

Plaintiff's motion to lift stay is moot. Plaintiff's motion for entry of default judgment is denied.

Judicial Notice

The Court, on its own motion, and pursuant to Evidence Code §452(d), takes judicial notice of the following: the complaint filed herein on 6/5/25; the federal action, Case No. 5:24-CV-01775-CBM (SPx), filed on 8/20/24; proof of service of the herein complaint on 6/24/25; Walmart's Motion to Stay filed on 7/24/25; Clerk's Request for Further Action dated 7/10/26 with attached Request for Default stamped "RECEIVED" on 7/29/25 and Default Judgment for entry by clerk stamped "RECEIVED" on 7/29/25; Walmart's answer to the complaint filed 8/28/25; Minute Order of 9/24/25 granting stay of action; and 6/2/26 Minute Order lifting stay.